

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

May 14, 2026

**Judge Melissa R. McCormick
Dept. CX105**

Department CX105 hears law and motion on Thursdays at 2:00 p.m.

Court reporters: Official court reporters typically are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted.

Submitting on tentative rulings: If all parties intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5305. Please do not call the department unless all parties submit on the tentative ruling. If all parties submit on the tentative ruling and so advise the court, the tentative ruling will become the court's final ruling, and the prevailing party shall give notice of the ruling.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also might make a different order. See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442 n.1.

NO.	CASE NAME	MATTER
1	Ayala v. Carter Shipping Services LLC 2022-01268249	<u>Plaintiffs' Motion for Final Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiffs' motion for final approval of a \$100,000 class action and PAGA settlement. The court grants the motion as follows: \$5,000.00 for enhancement awards to each plaintiff (total \$10,000.00);

		\$30,000.00 for attorneys' fees; \$12,362.35 for litigation costs; \$10,000.00 for settlement administration costs; and \$5,000.00 total PAGA penalties (\$3,750.00 to the LWDA). The final accounting hearing is scheduled for <u>January 14, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiffs shall submit a final accounting report at least 9 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller's Office under the unclaimed property law. Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.
2	Barragan v. California Mantel & Fireplace, Inc. 2021-01193396	Off calendar.
3	Barragan v. California Mantel & Fireplace, Inc. 2021-01235971	Off calendar.
4	Chavez v. RBA Builders, Inc. 2022-01259829	<u>Plaintiff's Motion for Preliminary Approval of Class Action Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$400,000 class action settlement. The court has the following questions and comments: 1. In the August 14, 2025 order (ROA 103), the court noted that paragraph 3.2.2(a) of the settlement agreement stated that "all payroll taxes, including employer payroll taxes, will be paid out from the Gross Settlement Amount." Settlement Agreement ¶ 3.2.2.(a). The court stated that this provision was inconsistent with other paragraphs of the settlement agreement (e.g., ¶¶ 1.21, 1.25) and inconsistent with the notice (e.g., §§ 3(1), 3(2)). The court stated that if the parties nevertheless propose to have "all payroll taxes, including employer payroll taxes" paid from the gross settlement amount, the parties must: (i) state specifically which taxes are proposed to be included in "all payroll taxes"; (ii) state the estimated amount of the deduction from the gross settlement amount for "all payroll taxes, including employer payroll taxes"; and (iii) explain why that deduction from the gross settlement amount is appropriate as the employment tax obligation is generally the employer's independent responsibility. In the supplemental filing, plaintiff states that the parties have agreed that defendant's employer payroll taxes shall be paid from the gross settlement amount. Supp. Moon Decl. (ROA 126) at 1:24-2:16. Plaintiff cites <i>Cifuentes v. Costco</i>

		<i>Wholesale Corp.</i> (2015) 238 Cal.App.4th 65, 77-78, as support for paying the employer's payroll taxes from the gross settlement amount. <i>Cifuentes</i> addresses withholding an employee's taxes from settlement funds, not an employer's taxes. <i>See id.</i> at 77 ("Costco's potential exposure for failing to withhold the payroll taxes outweighed the inconvenience to Cifuentes of seeking a refund for the excess withholding"); <i>id.</i> at 80 ("The law . . . required Costco to withhold payroll taxes from the award of lost wages. Costco complied with this requirement and satisfied the judgment by paying Cifuentes the remaining balance due. His remedy was to seek refunds for any excess withholding, not further damages from Costco"). Plaintiff should provide on point legal authority supporting payment of the employer's taxes from the gross settlement amount or the parties should revise the settlement agreement to state that defendant will pay the employer's taxes outside of the gross settlement amount. 2. The word "amended" should be removed from the title of the notice. 3. The last three sentences of the second paragraph of section 4(2) of the notice should be removed. 4. The last sentence of the first paragraph of the exclusion form should be removed, as this settlement does not settle a PAGA claim(s). 5. The last sentence in the second blue box on the exclusion form should be removed, as this settlement does not settle a PAGA claim(s). The hearing on plaintiff's motion for preliminary approval of a class action settlement is continued to <u>October 1, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to give notice and to file a proof of service. No earlier hearing date is available for this motion.
5	Cortina v. R & D Metal Fabricators Inc. 2025-01452225	<u>Plaintiff Alvaro Cortina's Motion to Seal</u> Plaintiff Alvaro Cortina moves to seal a settlement agreement between plaintiff and defendant R&D Metal Fabricators, which plaintiff lodged conditionally under seal in support of his motion approval of a PAGA settlement. For the following reasons, plaintiff's motion to seal is denied.

Unless confidentiality is required by law, court records are presumed to be open. Cal. R. Ct. 2.550(c). A record must not be filed under seal without a court order. Cal. R. Ct. 2.551(a). The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties. *Id.*

A party requesting that a court record be filed under seal “must file a motion or an application for an order sealing the record.” Cal. R. Ct. 2.551(b)(1). “The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” *Id.*

A court may order a record be filed under seal only if the court expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest. Cal. R. Ct. 2.550(d).

An order sealing a record must specifically state the facts that support the findings, and direct the sealing of only those documents and pages, or, if reasonably practicable, portions of those documents and pages, that contain the material that needs to be placed under seal. Cal. R. Ct. 2.550(e)(1). All other portions of each document or page must be included in the public file. *Id.*

Plaintiff’s counsel’s declaration accompanying the motion to seal states that the settlement agreement should be sealed because “[t]he parties agreed, as a material term of the individual settlement, that this agreement and all information pertaining to it remain confidential.” Solmer Declaration (ROA 72) ¶ 3.

Counsel’s declaration does not state facts sufficient to justify sealing the settlement agreement. As an initial matter, as stated above, a court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties. Cal. R. Ct. 2.551(a); *see also McNair v. National Collegiate Athletic Ass’n* (2015) 234 Cal.App.4th 25, 36 (“the mere agreement of the parties alone is insufficient to constitute an overriding interest to justify sealing the documents”). In addition, a settlement agreement that has a confidentiality provision cannot be sealed unless there is a showing of serious injury which would result from public disclosure. *Universal City Studios, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273, 1281-82. Plaintiff has not submitted any evidence that serious injury would result from public disclosure of the settlement agreement.

Plaintiff’s motion does not provide a sufficient evidentiary basis for the court to make the required findings to seal the settlement agreement or to conclude that the settlement agreement filed in support of plaintiff’s motion for approval of a PGA settlement should be shielded from public view. *See, e.g., Overstock.com, Inc. v. Goldman Sachs Group, Inc.* (2014) 231 Cal.App.4th 471, 487 (“If

		the trial court fails to make the required findings, the order is deficient and cannot support sealing”). Clerk to give notice.
6	Cruz v. Pacific Life Insurance Company 2025-01517146	Off calendar.
7	Davis v. Insight Psychology and Addiction, Inc. 2023-01319920	<u>Plaintiff’s Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff’s motion for preliminary approval of an \$355,000 class action and PAGA settlement. In the October 16, 2025 order (ROA 135), the court stated that the “Release by Participating Class Members” provision in paragraph 5.2 was overbroad. The court stated that the release of the class members’ claims must be fairly tailored to the claims that were or reasonably could have been asserted in the lawsuit based on the facts alleged in the operative complaint. In the January 29, 2026 order (ROA 147), the court stated that the “Release by Participating Class Members” in the amendment to the settlement agreement remained overbroad. The court stated that, in the second sentence, the phrase beginning with “and all other claims” to the end of the sentence should be removed. Plaintiff’s counsel states that defendant has declined to make the revision to the “Release by Participating Class Members” ordered by the court in the January 29, 2026 order and has otherwise not cooperated with plaintiff’s efforts to prepare the supplemental filings. Supp. Manus Decl. (ROA 158) ¶¶ 3-8. In addition to the above, the parties have not submitted a revision of paragraph 7.8.4 as ordered in the January 29, 2026 order (ROA 147, No. 2) nor have they submitted a revised notice (ROA 147, Nos. 5, 6) or a revised proposed order (ROA 147, Nos. 7, 8). Under these circumstances, the court has no alternative but to deny without prejudice plaintiff’s motion for preliminary approval. A status conference is scheduled for <u>August 27, 2026 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. If plaintiff files another motion for preliminary approval before August 27, 2026, the court may vacate the status conference. If the case remains unresolved as of August 27, 2026, the parties’ joint status conference statement should set forth, <i>inter alia</i>, their proposed schedule(s) for briefing and hearing the class certification motion. Plaintiff to give notice.
8	Gershfeld v. Home Depot U.S.A., Inc., et al. 2024-01409225	Off calendar.

9	Herrick v. TTE Technology, Inc. 2025-01535413	<u>Defendant TTE Technology, Inc.’s Demurrer to First Amended Class Action Complaint</u> Defendant TTE Technology, Inc. d/b/a TCL North America (TCL) demurs to the six causes of action in plaintiff Stephan Herrick’s first amended class action complaint. For the following reasons, TCL’s demurrer is sustained in part and overruled in part. In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318. A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. <i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05. Questions of fact cannot be decided on demurrer. <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556. Because a demurrer tests only the sufficiency of the complaint, a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. <i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 n.7. Plaintiff alleges claims individually and on behalf of a proposed class of California residents who purchased TCL QLED televisions. Plaintiff alleges TCL’s QLED televisions do not have the advertised QLED technology or include “negligible amounts” of the technology so as to not provide the advertised benefits. First Amended Complaint ¶ 3. Plaintiff alleges TCL advertises its televisions include QLED technology in order to charge a premium price to consumers. <i>Id.</i> ¶ 6. <i>First, second and third causes of action</i> Plaintiff’s <u>first cause of action</u> alleges violation of the Unfair Competition Law (UCL), Business & Professions Code section 17200 et seq. The UCL prohibits “any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising.” The UCL’s scope is broad and does not proscribe specific practices but defines “unfair competition” to include “any unlawful, unfair, or fraudulent business act or practice.” <i>Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.</i> (1999) 20 Cal.4th 163, 180. Because the statute is written in the disjunctive, there are three varieties of unfair competition: (1) unlawful acts or practices; (2) unfair acts or practices; and (3) fraudulent acts or practices. <i>Id.</i> Plaintiff alleges TCL violated the UCL (i) by violating the False Advertising Law and the Consumer Legal Remedies Act; (ii) by “making statements about the quantum dot technology used in its televisions that are likely to deceive consumers and deceived plaintiff”; (iii) because “the acts and practices set forth in the complaint offend established policy and harm plaintiff and the class as well as competition”; and (iv) because “the acts and practices set forth in the complaint regarding their misrepresentation and untrue statements to plaintiff and the class are intended to deceive them and influence the plaintiff’s and the class members’ decision
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to purchase TCL's televisions." First Amended Complaint ¶¶ 92-95. Plaintiff alleges TCL's violation of the UCL injured plaintiff and the class "because they paid more for their televisions than they otherwise would have paid absent TCL's deceptive practices." *Id.* ¶ 96.

Plaintiff's second cause of action alleges violation the False Advertising Law (FAL). The FAL makes it unlawful "for any person, firm, corporation or association, or any employee thereof with intent directly or indirectly to dispose of real or personal property or to perform services, professional or otherwise, or anything of any nature whatsoever or to induce the public to enter into any obligation relating thereto, to make or disseminate or cause to be made or disseminated before the public in this state, or to make or disseminate or cause to be made or disseminated from this state before the public in any state, in any newspaper or other publication, or any advertising device, or by public outcry or proclamation, or in any other manner or means whatever, including over the Internet, any statement, concerning that real or personal property or those services, professional or otherwise, or concerning any circumstance or matter of fact connected with the proposed performance or disposition thereof, which is untrue or misleading, and which is known, or which by the exercise of reasonable care should be known, to be untrue or misleading, or for any person, firm, or corporation to so make or disseminate or cause to be so made or disseminated any such statement as part of a plan or scheme with the intent not to sell that personal property or those services, professional or otherwise, so advertised at the price stated therein, or as so advertised." Bus. & Prof. Code § 17500.

Plaintiff alleges TCL violated the FAL by "caus[ing] to be made or disseminat[ing] throughout California and the United States, through advertising, marketing, and other publications, statements that were untrue or misleading, and which were known, or which by exercise of reasonable care should have been known to TCL, to be untrue and misleading to consumers, including plaintiffs and other class members." First Amended Complaint ¶ 105. Plaintiff alleges TCL misrepresented the technology and materials used in its QLED televisions. *Id.* ¶ 106. Plaintiff alleges TCL's violation of the FAL injured plaintiff and the putative class members by causing them to purchase televisions they otherwise would not have purchased or by paying more for televisions than they should have paid. *Id.* ¶ 107.

Plaintiff's third cause of action alleges violation of the Consumers Legal Remedies Act (CLRA). The CLRA prohibits unfair or deceptive acts that "result[] in the sale or lease of goods or services to any consumer" Civ. Code § 1770(a). The CLRA prohibits several distinct unfair methods of competition and unfair or deceptive acts or practices with regard to consumer transactions. *Id.*

Plaintiff alleges TCL violated the CLRA by representing that its televisions have characteristics, uses, or benefits that they do not have; by representing that its televisions are of a particular standard, quality, or grade, when they are not; and by advertising

its televisions with intent not to sell them as advertised. First Amended Complaint ¶¶ 116-118.

TCL argues plaintiff's first, second and third causes of action do not state claims because "TCL's marketing is not likely to mislead a reasonable consumer." Brief (ROA 46) at 14:15-16. Plaintiff alleges sufficient facts to state claims for violation of the UCL, the FAL and the CLRA. TCL's factually-intensive arguments regarding whether its marketing is likely to mislead a reasonable consumer cannot be resolved on demurrer. *Berryman*, 152 Cal.App.4th at 1556.

TCL also argues plaintiff's UCL cause of action is "conclusory and duplicative" and does not state a claim under the "unlawful" prong. As plaintiff has alleged sufficient facts to state claims for violation of the FAL and the CLRA, plaintiff thus has alleged sufficient facts to state a claim for violation of the UCL. The demurrers to the first, second and third causes of action are overruled.

Fourth cause of action

Plaintiff's fourth cause of action alleges unjust enrichment. Plaintiff alleges TCL's misrepresentations allowed it to sell its televisions at a higher price than that for which the televisions otherwise should have sold, causing TCL to earn profits to which it was not entitled, thereby unjustly enriching TCL. First Amended Complaint ¶¶ 135-136.

"The elements for a claim of unjust enrichment are 'receipt of a benefit and unjust retention of the benefit at the expense of another.' [Citation.] 'The theory of unjust enrichment requires one who acquires a benefit which may not justly be retained, to return either the thing or its equivalent to the aggrieved party so as not to be unjustly enriched.'" *Lyles v. Sangadeo-Patel* (2014) 225 Cal.App.4th 759, 769.

Some courts have held that unjust enrichment is not a cause of action (see *Levine v. Blue Shield of California* (2010) 189 Cal.App.4th 1117, 1138; *Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1370), and other courts have recognized it as a cause of action (see *Peterson v. Cellco Partnership* (2008) 164 Cal.App.4th 1583, 1593; *Professional Tax Appeal v. Kennedy-Wilson Holdings, Inc.* (2018) 29 Cal.App.5th 230, 238; *Lyles*, 225 Cal.App.4th at 769).

Sepanossian v. National Ready Mixed Concrete Co. (2023) 97 Cal.App.5th 192, held on a motion for judgment on the pleadings that where a plaintiff states a claim for violation of the UCL under the fraudulent and unfairness prongs, a claim for unjust enrichment is unnecessary:

"More fundamentally, '[b]ecause we have found that [Sepanossian's] remedies at law are adequate' (i.e., his count alleged under the UCL), a separate claim for restitution is unnecessary. (*Collins v. eMachines, Inc.* (2011) 202 Cal.App.4th 249, 260, 134 Cal.Rptr.3d 588 (*Collins*) [on review of a successful

motion for judgment on the pleadings, where appellate court determined plaintiffs stated valid claims under the UCL, Consumers Legal Remedies Act, and fraud, “a claim for restitution, alleging that [defendant] has been unjustly enriched by its fraud, is unnecessary”).) ‘This conclusion follows from the general principle of equity that equitable relief (such as restitution) will not be given when the plaintiff’s remedies at law are adequate.’ (*Ibid.*)

“Here, the gravamen of Sepanossian’s unjust enrichment claim is that Ready Mix was unjustly enriched by customers paying fees that were fraudulent and unfair under the UCL, and that such customers are entitled to recover those fees from Ready Mix. The unjust enrichment claim merely incorporates the allegations, derivative of the UCL claim, that Ready Mix received a financial advantage—money obtained from misleadingly named fees charged to its customers—which it unjustly retained at their expense. Restitution is already an available remedy under the UCL cause of action, within the broad equitable discretion of the trial court. (See § 17203 [restitution is available “to restore to any person in interest any money or property . . . which may have been acquired by means of such unfair competition”]; see also *In re Tobacco Cases II* (2015) 240 Cal.App.4th 779, 790, 192 Cal.Rptr.3d 881.) Thus, a separate claim is unnecessary for Sepanossian to recover restitution. ‘In light of the adequate legal remedies, we conclude the complaint does not state a claim for restitution based on unjust enrichment.’ (*Collins, supra*, 202 Cal.App.4th at p. 260, 134 Cal.Rptr.3d 588.)”

Sepanossian, 97 Cal.App.5th at 207-08.

Here, the gravamen of plaintiff’s unjust enrichment claim is that defendant was unjustly enriched by plaintiff and the putative class paying more for televisions because TCL advertised and sold televisions with false display technology specifications, and that plaintiff and the putative class are entitled to recover the extra profits from TCL. First Amended Complaint ¶¶ 133-138. The unjust enrichment claim incorporates the allegations, derivative of the UCL, FAL and CLRA claims, that TCL received a financial benefit—money obtained from overpriced televisions—which it unjustly retained at plaintiff’s and the putative class members’ expense. The demurrer to the fourth cause of action for unjust enrichment is sustained with leave to amend.

Fifth cause of action

Plaintiff’s fifth cause of action alleges fraud by concealment. Plaintiff alleges TCL failed to disclose and/or concealed material facts, which induced plaintiff and the putative class members to purchase televisions they otherwise would not have purchased or to pay more than they otherwise would have paid for the televisions. First Amended Complaint ¶¶ 140-141.

Concealment is a species of fraud or deceit. *Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 868. The elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or

suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage. *Id.*

Plaintiff does not allege TCL was under a duty to disclose any allegedly concealed fact to plaintiff. Plaintiff accordingly has not stated a claim for fraud by concealment. The demurrer to the fifth cause of action for fraud is sustained with leave to amend.

Sixth cause of action

Plaintiff's sixth cause of action, entitled "negligent misrepresentation," alleges TCL failed to disclose and/or concealed material facts regarding the display technology of its televisions. First Amended Complaint ¶¶ 145-146.

The tort of negligent misrepresentation extends only to affirmative statements or positive assertions. There is no liability for implied representations or negligent concealment. *Wilson v. Century 21 Great Western Realty* (1993) 15 Cal.App.4th 298, 306 (negligent misrepresentation is a species of fraud or deceit specifically requiring a "positive assertion" or an "assertion" of fact); *Byrum v. Brand* (1990) 219 Cal.App.3d 926, 942 ("for a cause of action for negligent misrepresentation, clearly a representation is an essential element"). The demurrer to the sixth cause of action is sustained with leave to amend.

Punitive damages

TCL argues plaintiff's prayer for punitive damages on the CLRA claim "fails" because plaintiff has not stated a claim for violation of the CLRA. As stated above, TCL's demurrer to the CLRA claim is overruled. TCL's demurrer to plaintiff's prayer for punitive damages is thus also overruled.

TCL's unopposed Request for Judicial Notice (ROA 48) is granted as to documents cited in the first amended complaint, although none of the documents of which TCL seeks judicial notice was material to the disposition of the demurrer.

Should plaintiff desire to file an amended complaint addressing the issues in this ruling, plaintiff must file and serve it by May 26, 2026.

Plaintiff to give notice.

Status conference

The court has reviewed the parties' joint initial case management conference statement filed May 7, 2026 (ROA 111), based thereon continues the May 14, 2026 status conference to September 3, 2026 at 9:00 a.m. in Department CX105.

		The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. Clerk to give notice.
10	Hinson v. Niterra North America, Inc. 2023-01345470	<u>Plaintiff's Motion for Final Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for final approval of an \$375,000 class action and PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: \$5,000.00 for enhancement award to plaintiff; \$112,500.00 for attorneys' fees; \$19,914.60 for litigation costs (see No. 1 below); \$7,750.00 for settlement administration costs; and \$20,000.00 total PAGA penalties (\$15,000.00 to the LWDA). 1. Plaintiff's counsel is ordered to file with the court <u>by May 21, 2026</u> an itemized list of the costs set forth in paragraph 23 of the Bokhour Declaration (ROA 138). The final accounting hearing is scheduled for <u>December 10, 2026 at 9:00 a.m.</u> in Department CX105. Plaintiff shall submit a final accounting report at least 9 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller's Office under the unclaimed property law. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
11	Kimco Staffing Data Breach Cases JCCP 5321	<u>Plaintiffs' Motion for Preliminary Approval of Class Action Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiffs' motion for preliminary approval of a data breach class action settlement with total settlement consideration of \$1,040,000, comprised of a \$640,000 settlement fund and "remedial Business Practice Enhancements" with an asserted value of \$400,000. Subject to plaintiffs' submission of the documents identified below, the court grants the motion as follows: \$2,500.00 for each named plaintiff's enhancement award (not to exceed; together, total not to exceed \$10,000.00); \$192,000.00 for attorneys' fees (not to exceed 30% of \$640,000.00); \$30,000.00 for litigation costs (not to exceed); and \$97,000.00 for settlement administration costs (not to exceed).

		1. The court issued two prior orders (ROA 154, 161) identifying several issues regarding the settlement for the parties to address in supplemental filings. The Second Supplemental Joint Declaration of Plaintiffs' Counsel (ROA 163) and the Hagen Declaration attached as Exhibit 1 thereto satisfactorily address the issues regarding counsel's valuation analysis, the benefits of the settlement to the class members and whether the settlement is in the class members' best interests, and defendant's insurance coverage and other available financial resources. 2. The second amendment to the settlement agreement is not signed by plaintiffs' counsel or the parties. 3. The release described in Exhibits C(1) and C(2) to the second amendment to the settlement agreement is inconsistent with the release in the second amendment to the settlement agreement and should be revised, i.e., the phrase "the operative complaint in" should be inserted after "in" and before "this Litigation." 4. The settlement agreement, the amendments thereto, and the notice packet should be attached as exhibits to the proposed order (ROA 121). The settlement agreement and amendments thereto attached to the proposed order must be fully executed by the parties and counsel. Plaintiffs are ordered to file and serve <u>by May 21, 2026</u> a revised proposed order consistent with the above, with all exhibits attached (including Exhibits C(1) and C(2) revised as stated above). The final approval hearing is scheduled for <u>October 15, 2026 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiffs are ordered to provide notice and to file a proof of service.
12	Murkison, et al. v. Kimco Staffing Services, Inc. 2024-01428357	<u>Status Conferences Re Stay in Case Nos. 2024-01446404 and 2024-01428357</u> The court has reviewed the parties' joint status conference statement filed May 4, 2026 in Case No. 2024-01446404 (ROA 63). The cases remain stayed pending determination regarding approval of the proposed class action settlement in JCCP No. 5321 or further order of the court. See 7/31/25 Order (ROA 53 in Case No. No. 2024-01446404). The Status Conferences Re Stay scheduled for May 14, 2026 are continued to <u>October 15, 2026 at 2:00 p.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. The parties may file one joint status conference statement for both cases (Case Nos. 2024-01446404 and 2024-01428357) should they desire to do so. Clerk to give notice.

13	Carl, et al. v. Kimco Staffing Services, Inc. 2024-01446404	<u>Status Conferences Re Stay in Case Nos. 2024-01446404 and 2024-01428357</u> The court has reviewed the parties' joint status conference statement filed May 4, 2026 in Case No. 2024-01446404 (ROA 63). The cases remain stayed pending determination regarding approval of the proposed class action settlement in JCCP No. 5321 or further order of the court. See 7/31/25 Order (ROA 53 in Case No. No. 2024-01446404). The Status Conferences Re Stay scheduled for May 14, 2026 are continued to <u>October 15, 2026 at 2:00 p.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. The parties may file one joint status conference statement for both cases (Case Nos. 2024-01446404 and 2024-01428357) should they desire to do so. Clerk to give notice.
14	Kondori, et al. v. Mission Imports 2022-01295280	<u>Plaintiffs' Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiffs' motion for approval of an \$395,000 PAGA settlement. Subject to plaintiffs' submission of the documents identified below, the court grants the motion as follows: No enhancement award to either named plaintiff; \$118,500.00 for attorneys' fees; \$9,577.55 for attorneys' costs; \$5,150.00 for settlement administration fees; and \$261,772.45 total PAGA penalties (\$196,329.34 to LWDA). Plaintiffs are ordered to submit <u>by May 21, 2026</u> a proposed order and judgment (including the above amounts) <u>with all exhibits attached</u> (settlement agreement; amendments thereto; and notice letter (revised to include the above amounts)). The final accounting hearing is scheduled for <u>December 10, 2026 at 9:00 a.m.</u> in Department CX105. Plaintiffs shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.
15	Poudel v. Mobilenet Services, Inc., et al. 2022-01276271	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for

preliminary approval of an \$400,000 class action and PAGA settlement. The court has the following questions and comments:

As to the settlement:

1. The court inquired in the January 22, 2026 order (ROA 113) why defendants are paying the settlement in installments. The court stated that if defendants are paying the settlement in installments due to defendants' financial condition, admissible evidence of defendants' financial condition must be provided, including appropriate financial documents such as balance sheets, cash flow statements, and profit and loss statements. The court also stated that the last sentence of paragraph 8.1 should be revised to state whether the timing described in that sentence is "whichever is sooner" or "whichever is later."

Plaintiff's counsel states that defendants "demonstrated a bona fide financial need" to structure "the settlement payment as an installment plan." Supp. Chang Decl. (ROA 118) ¶ 6. The parties have not submitted admissible evidence of defendants' financial condition, including appropriate financial documents such as balance sheets, cash flow statements, and profit and loss statements, as ordered by the January 22, 2026 order.

Paragraph 8.1 of the settlement agreement has also not been revised. Plaintiff's counsel's explanation in paragraph 8 of the Supplemental Chang Declaration does not address the issue regarding the lack of clarity in paragraph 8.1.

2. The reference to paragraph "1.2.1" in the amendment to the settlement agreement appears to be an error.
3. The references to paragraphs 1.41 and 1.43 in the amendment to the settlement agreement appear to be transposed.
4. The second-to-last sentence in paragraph 7.6 of the amendment to the settlement agreement should be removed, as it is inconsistent with the last sentence of the same paragraph.
5. In the January 22, 206 order, the court stated that while it will not determine the amount of attorneys' fees to be awarded until final approval, the court is unlikely to approve attorneys' fees in excess of 30% of the gross settlement amount absent unique circumstances. The court stated that plaintiff's counsel should address in the supplemental filing whether any such unique circumstances exist here. Plaintiff's counsel has not identified any unique circumstances. The court preliminarily finds attorneys' fees not to exceed 30% of the gross settlement amount reasonable for this case.
6. In the January 22, 2026 order, the court stated that while it will not determine the amount of any enhancement award to

		be paid to plaintiff until final approval, the court is unlikely to approve an enhancement award in excess of \$5,000 absent unique circumstances. The court stated that plaintiff should address in the supplemental filing whether any such unique circumstances exist here. The court also noted that plaintiff stated that plaintiff's enhancement payment is in part in exchange for "provid[ing] a general release of claims and a waiver of rights under California Civil Code Section 1542 to Defendant as part of the settlement." Poudel Decl. (ROA 96) ¶ 21; see <i>also</i> Brief (ROA 100) § VIII. The court stated that an enhancement award is not intended to serve as consideration for the release of additional claims, but rather to compensate class representatives for work done on behalf of the class, to make up for financial or reputational risk undertaken in bringing the action, and, in some circumstances, to recognize their willingness to act as a private attorney general, and that the court is unlikely to approve a settlement that provides an enhancement award in exchange for a general release. Plaintiff has not identified any unique circumstances warranting the higher amount plaintiff seeks. Plaintiff's counsel states that the enhancement award plaintiff seeks "is not consideration in exchange for [plaintiff's] release of individual claims, but rather to compensate plaintiff for time and effort plaintiff expended on behalf of the Class Members, and for the risks in being the named plaintiff in a class against his former employer." Supp. Chang Decl. ¶ 23. The former portion of plaintiff's counsel's statement contradicts plaintiff's declaration. The court preliminarily finds an enhancement award not to exceed \$5,000 reasonable for this case. 7. In the January 22, 2026 order, the court stated that defendants should advise, in a declaration filed with the court, whether, after making reasonable inquiry, they are aware of any class, representative or other collective action in any court that asserts claims similar to those asserted in this action (other than Case No. 2022-01284924, of which the court is aware). If any such actions are known to exist, the declaration shall also state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case. This has not been done. 8. In the January 22, 2026 order, the court stated that all parties and counsel must disclose any relationship(s) with the proposed cy pres recipient. Plaintiff, defendants and defendants' counsel have not done this. <u>As to the proposed order (ROA 119, 121):</u> 9. In the January 22, 2026 order, the court stated that the settlement agreement and any amendments thereto and the
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		class notice packet (in all languages) should be attached to the proposed order as exhibits. Neither the settlement agreement nor the amendment thereto is attached to the proposed order as an exhibit. 10. In the January 22, 2026 order, the court stated that paragraph 28 should state that the motion for final approval must be filed and served at least 16 court days before the final approval hearing. This has not been done. The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is continued to <u>October 1, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See <i>a/so</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
16	Poudel v. Mobilenet Services, Inc., et al. 2022-01284924	<u>Status Conference in Case No. 2022-01284924</u> Plaintiff's counsel states that plaintiff will file a request for dismissal of this action before May 14, 2026. Supp. Chang Decl. (ROA 118 in Case No. 2022-01276271) ¶ 3. The May 14, 2026 status conference is vacated. An Order to Show Cause re Dismissal is scheduled for <u>October 1, 2026 at 2:00 p.m.</u> in Department CX105. Plaintiff is ordered to appear. Failure to appear will result in dismissal of the entire action. Clerk to give notice.
17	Uroza v. Niki Investments, Inc. T/A Domino's Pizza, et al. 2025-01523955	Off calendar.